In July 2017, the government constituted a committee of experts under the chairmanship of Justice B.N. Srikrishna to deliberate upon a data protection framework for India. While the preamble to the terms of reference (ToR) of the Srikrishna Committee referred to the ‘need to ensure growth of the digital economy’, the ToRs were governed by the utmost importance of ‘keeping personal data of citizens secure and protected’. The aim was also ‘to study various issues relating to data protection in India’ and ‘to make specific suggestions for consideration of the Central government on principles to be considered for data protection in India and suggest a draft data protection bill’.

The report of the Srikrishna Committee did not make a single recommendation on how to seize the opportunity to digitalize the Indian economy by using data as the critical advantage. All its recommendations related on how to define and deal with personal data. The Committee also recommended a comprehensive Personal Data Protection Bill, 2018.

The Bill recommended by the Srikrishna Committee was examined by the government taking into consideration feedback from people and institutions. After certain changes, it introduced the Personal Data Protection Bill, 2019, in the Parliament for adoption. The 2019 Bill is far more restrictive in the use of personal data than the 2018 Bill.

There are four major concerns with the way the government has chosen to deal with the issue of data.

First, the world of data is being viewed from a very narrow lens of personal data. The larger world of data, which includes non-personal data as well as non-personal aspects of personal data, is being given short shrift.

Second, all the energy and efforts are focused only on protection of personal data at every stage—collection, storage and use—as a matter of privacy and private property. There is no thought and strategy for using data as a matter of critical advantage for building a competitive and rich digital